



Debre Markos University

School of Law

Law of Evidence PPt

(Chapter: One)

Debre Markos: Ethiopia

2014



1: Evidence law: general introduction

Chapter Objectives:

- Describe what law of evidence is all about
- Explain the significance of evidence
- Identity the differences between the civil law and common law approach to law of evidence and the Ethiopian position
- Discuss the concept of evidence law in civil and criminal cases , And
- Discuss the type of evidences



1: contd'

1.1 Meaning of Evidence:

- ✓ Evidence and law of evidence are two different things.
- ✓ The word “evidence” is originated from a Latin term “*evidentia*” which means to show clearly, to make clear to the sight to discover clearly certain, to ascertain or to prove.
- ✓ Evidence is something, presented before the court to prove or disprove the existence or non-existence of an alleged fact or an issue under question .
- ✓ The party who alleges the existence of a certain fact has to prove its existence and the party, who denies it, has to disprove its existence or prove its non-existence.



1: contd

- ✓ Evidence is the means of satisfying the court of the truth or untruth of disputed fact between the parties in their pleadings.
- ✓ **As per rule 3 of the DER**, evidence is “ *a means whereby any alleged matter of fact, the truth of which is submitted to investigation, is proved and includes statements by accused persons, admission, Judicial notice, presumptions of law, and observation by the court in its Judicial capacity*”
- ✓ This definition, though it isn't exhaustive it failed to include the reliable evidence, particularly in civil case, i.e. **documentary evidence**.



1: contd

But, in our country though there are many laws that incorporate evidentiary rules, non of them define what evidence mean.

Thus, the question that should be raised here is that what is evidence? How it relate or differ with the following terms:

- ☐ **Fact**
- ☐ **Information**
- ☐ **Means of Proof:** look art 147 of the cr pr code.



contd'

Section 3 of Indian Evidence Act, 1872 defines 'Evidence' as follows:

Evidence means and includes:

- 1. All statements which the court permits or requires to be made before it by Witnesses, in relation to matters of fact under inquiry, such statements are called **Oral Evidences**.*
- 2. All documents produced for the inspection of the court, such documents are called **Documentary Evidences**.*

Q. Dear students, contrast the definition given for evidence in the DER with that of the IEA ? 5 minute



1: contd

1.2 Evidence law:

- ✓ different writers defines it according to their own perceptions but with similar message; *one defines in a more elaborated way while others do not.*
- ✓ Mc. *Cormick* defines evidence law as “... the system of rules and standards by which the admission of proof at the trial of a lawsuit is regulated”

But this definition fails to incorporate **what things are going to be dealt with by the course.**



contd'

Robert Arthur Melin have made an attempt to define evidence law in a more comprehensive way.

As to him the law of evidence is the body of legal rules developed and enacted to govern:

facts that may be considered in court?

1. Facts in issue
2. Facts relevant to facts in issue

The methods of securing consideration of these facts:

1. By proof
 - Real (e.g. documentary, exhibits) evidence
 - Oral evidence



contd'

2. Certain facts, which need not be proved

- ✓ *Judicial notice*
- ✓ *Judicial admission*

C. The party that must secure consideration of what facts:
This is about burden of proof and degree of proof required to win the case.

D. At the appeal level, evidence law can be said deal with the effect of failure to comply with rules in any of the above categories of evidence law.

Because, the decision of the court regarding the admissibility or non admissibility of evidence may form the subject of a ground of appeal.



contd'

To finalize it, the law of evidence in the major legal systems is the body of legal rules developed or enacted to govern:

- What facts need to be proved and produced to the court;
- Which of the parties have the burden of proof;
- The required standards of proof to win the case;
- The admissibility, creditability, and weight of evidence, and
- Other procedural matters as to how the evidence shall be produced before the court of law.



contd'

Purpose of Evidence law:

- ✓ provides the court with information
- ✓ Regulates the process of proof
- ✓ Helps to achieve accelerated, fair and economic justice
- ✓ It may protect public interest by preventing the truth from being discovered
- ✓ protect the accused's right to a fair trial. (see Art 138 of cr.p.c and Rule-145 of DER)



contd'

Nature of Evidence law:

- Laws may broadly be classified in to **substantive** and **adjective**.
- Law of evidence is categorized under adjective law together with procedural laws.
- **However**, there are certain issues procedural laws never address and are left to evidence law.
- **This includes**, the standard of proof, facts to be proved or need not be proved and the value to be given to each term of evidence etc.



contd'

- ❑ **Thus**, evidence law suitably falls within the general category of Adjective laws.
- ❑ **However**, all nations do not have their own code of evidence, which can be considered as one sect of Adjective law.
- ❑ **For instance**, our country Ethiopia does not have evidence code.
- ❑ The truth is that our rules of evidence are not put together in a code or proclamation, but are found widely scattered in both substantive and procedural law.



contd'

Q. Dear students, is law of evidence more of practical course?

5 minute

One can understand more about the rules of evidence that he knows theoretically when he becomes a practitioner. Do you agree with this statement?



contd'

Evidence in civil and common law legal systems

There are two major legal systems (legal traditions) in the world.

- (1) The Anglo - American (the common law legal system).
- (2) The continental or the civil law legal system.

Q. Is there a difference between the two legal systems regarding evidence rules?



contd'

A. Organization of the rule of evidence:

- The common law legal system, have separate rules of evidence. The rules determine what evidence is admissible and what evidence is not admissible.

The continental system have no separate code of evidence law.

B. Difference regarding the sources of evidence rules :

- Common law legal system have Separate code of evidence law enacted by the law-making organ.
- they have also judge made evidence rules due to the existence of the precedent system.



contd'

C. The difference regarding the system of inquiry

- ❖ The common law countries employ the '*Adversarial system*' of evidence gathering.
- ❖ An adversarial trial provides a forum in which two parties present competing version of the truth. It is a party-lead system judges **listen** the evidence Presented and decide .
- ❖ Control in the adversarial process **rests with the parties**. For this reason, the role of the advocate in the presentation of evidence can not be underestimated.
- ❖ The parties' legal representatives collect the evidence and decide **what evidence should be presented and how it should be presented.**



contd'

- The civil law system employ the "*inquisitorial system*" of inquiry
- The court has the **task of making inquiry**.
- It question witnesses, directs the police investigation, commission the service of expert witness and examines all relevant evidences.
- The role of the advocate is considerably less.
- Ensure his client a fair trial by checking that **correct law is applied and that procedural rights are respected**.
- The judge obtains most of the evidence through the process of questioning witnesses.



contd'

D. The differences on the types of evidences they emphasized

In common law legal system, the greatest weight is attached to **oral testimony** of the **parties and witnesses**.

- The physical presence of the witness affords the judge the opportunity of observing **the witness** demeanor.
- Documentary evidence is generally regarded as being **inferior** to oral evidence.



contd'

E. witnesses of parties in their own case

- In common law legal systems, parties themselves are **competent witnesses in their own case.**
- Here, the defendant who chooses to **plead not guilty puts the prosecution to proof of its case.**
- The defendant is a competent witness in his own defense and may therefore choose whether or not to give evidence on oath.

However, in accordance with the **general view in civil law system,** it is considered best if no one is a witness in his own case.



contd'

F. Admissibly of hearsay evidence?

- The oral evidence must be **direct** in common law legal systems.
- **In hearsay evidence**, there is **no test of accuracy** which enables the opponent party in checking whether or not the witness is speaking the truth, like cross-examination and physical presence of the real witness.

Since, it is the right of the accused to confront his or her accusers
In civil law it may be admissible.

Q. How about in Ethiopia? See art. **137(1),cr pc, 261(1) civi pc**,
And Cassation number **113464** decided to be admissible.



contd'

Evidence in Ethiopia:

Q. Do you think Ethiopia has a separate code of evidence?

- Ethiopia do not have a separate and codified law of evidence.
- Rather our evidentiary rules are found in scattered throughout our substantive laws such as the criminal law, private laws you find in the civil code, commercial code, etc and adjective laws mainly the criminal procedure and the civil procedure
- we have a number of evidence rules scattered throughout our substantive laws like the Articles on proof of marriage, proof of will, proof of contract, proof of ownership...



contd'

- Ethiopians draft evidence rules basically copies the **Indian evidence act** with certain interesting twists of its own, particularly by way of omission.
- **In Ethiopia**, for more than forty years this draft evidence rules have been in use for **academic purposes**.
- It is recently accepted that we need to have separate rules of evidence and the **preparation of the draft evidence law has already started** thus, now it seems that we may have our evidence law in a foreseeable future.



contd'

Sources of Ethiopia's Evidence Rules:

- (i) The evidentially rules which are found scattered through out our substantive, Procedural and other proclamations.
- (ii) Modern and internationally accepted principles of evidences have been in use in our courts just to fill the existing gaps found in out substantive and procedural laws.
- (iii) Even though the tradition of publishing and distribution of case reports is not as such developed, case laws are also considered as the third source of evidence rules in Ethiopia.



contd'

Evidence law in civil and criminal cases:

1. Parties

- The civil case is one instituted by **individual** for the purpose of securing **redress for a wrong**, which has been committed against him, and if he is successful he will be **awarded money or other personal relief**.
- While, a penal prosecution is **instituted by** the government for the purpose of **securing obedience** to its laws by the **punishment or correction** of the lawbreaker.
- Therefore, the existence of difference regarding the strictness's of the evidentiary rule applicable on those two cases seems proper.



contd'

Differences:

2. State of fair trial

In criminal cases, the law of evidence has protection to the accused in respect to his right to a **fair trial** by excluding certain relevant evidences

- The court may also exercise its discretionary power to support the accused's right to a **fair trial** by excluding potentially **relevant evidences**.
- i.e defendant's **bad character** or **his previous convictions** will not be admitted at **trial**, (see art 138 of cr.p.c)



contd'

Differences:

- While in civil proceedings evidence **that is relevant and probative of a fact**, which needs to be proved to the court, will generally be admissible.
- There are no mandatory rules requiring the exclusion of **evidence in civil cases**.
- **Therefore**, we can say that the **fair trial** provision is not as important in civil case as there is a greater **inequality in resources between the parties in contrast with criminal proceedings in which the power full government in one side and the weaker accused on the other side are there**.



contd'

Differences:

3. Effect of the judgment

- Losing civil case may result in the **claimant** or the defendant **suffering serious damage** to his financial **resources or property**, he will not loss his liberty, life or suffer the same social stigma as a person who has been convicted of criminal offence.
- This is the reason why there is huge difference regarding the standard of **persuasion required in civil and criminal cases.**



contd'

Differences:

4. Standard of proof

- The rules relating to the standard of proof determines how much proof is required for a party to persuade the court.
- The appropriate standard of proof that will have to be satisfied **in a criminal case is heavier than in a civil case.**
- **In criminal proceeding**, the public prosecutor in order to win the case, he is required to prove, **beyond reasonable doubt.** While in civil case the standard is **preponderance** of evidence or probabilities.



contd'

Differences:

5. Burden of proof

- The general rule in criminal cases is that the prosecution bears the burden of proving the **defendant's guilt** and the substantive law defines what the prosecution must prove in order to convict the defendant. see **Art 136 of cr.p.c)**
- Everyone charged with criminal offence shall be presumed **innocent until proven guilty according to law.**
- **It also reflects** an aspect of procedural fairness in that the prosecution has considerably **more resources** at its disposal than the defendants and therefore it should bear the **burden of proving the accused guilt.**



contd'

Differences:

- The well established general rule about the incidence of the legal burden of proof in civil proceedings is *that 'he who asserts must prove'*.
- **To put simply**, the legal burden of proving a fact in issue in a civil trial is on the party **that asserts that fact**.
- **Therefore**, in civil cases, the burden of proof first lies in the plaintiff.
- **However**, this burden of proof will shift to the defendant if the defendant admits the allegations and come up with positive defense like “*counterclaim*”.
- **In such case**, the burden of proof lies on the defendant (see **Art 258 of civ.P.C**)



contd'

Differences:

6. Evidence weight

- **In civil cases**, most of the claims are raised from **contractual, monetary or proprietary** relation ships which could mostly proved by **adducing documentary evidences**.
- **While due to the very nature of ways of committing a crime**, the public prosecutor mostly proves his allegation by **providing an expert and lay witnesses**.
- **And the crime**, which could be proved by documentary evidences, is less in numbers since they are being committed in a more **sophisticated way**.



contd'

Differences:

7 Admissibility of admitted evidences

- Every allegations of fact in the statement of claim, if not denied **specifically or by necessary implication, or stated to be not admitted in the statement of defense**, shall be presumed admitted and the court shall give judgment on such admitted facts. (see **Art 83** of civ.p.c **Art 242** of civic).
- **In criminal cases**, where the accused says nothing in answer to the charge or **failure to cross-examine, a plea of not guilty shall be entered.**
- The silence of the accused does not amounts to admission.(see **Art 27, and 134(1) cr.p.c**].



contd'

Differences:

8. judicial admissions

- Courts are under obligation to give judgments based on such admission without requiring the production of additional evidences. (see Art 242 of civ.p.c).
- While in criminal **cases, judicial admissions are not conclusive.**
- **Of course,** when the accused admits without reservations every ingredient in the offence charged, the court shall enter a plea of guilty and may forthwith convict the accused.
- **However,** the court may require the prosecution to call such evidence for the prosecution, as it considers necessary and may permit the accused to call evidence. (see art 134 of cr.p.c).



contd'

Differences:

9. Admission with reservation

- **In criminal cases**, admission shall be made without reservation.
- When we say the accused admitted, we are saying that he admitted each and every criminal elements of the alleged offences.

Q. what if the defendant say “yes I am guilty”? 5 minute

However, in civil proceedings the party may admit the truth of the whole or any part of the case of the other party.



contd'

Classification of evidence:

Direct evidence

- Direct evidence establishes a fact in issue directly.
- A fact in issue is something a party alleges to exist and the other party denies the alleges.
- Direct evidence is provided by witnesses giving oral testimony of something they perceived with their own senses.
- It is also afforded by the presentation of documents, photographs and the like.



contd'

2. Indirect evidence

- Circumstantial evidence is indirect evidence that tends to establish a **conclusion by inference**.
- It doesn't directly tell you or prove the existence or non-existence of the alleged or disputed fact.
- But when you put them together, they form a chain leading to a logical conclusion.
- **Since** most of **offences are being executed in a very sophisticated manner**, it is difficult to get direct evidence.
- **In such case**, the option we have is, proving the disputed fact by circumstantial evidence.